



File No.: EXP202201455

IMI Reference: A61VMN 363094

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint on December 8, 2020, with the Data Protection Commission (hereinafter, DPC), the data protection authority of Ireland. The complaint is directed against FLORAQUEEN FLOWERING THE WORLD S.L. with NIF B-63609051 (hereinafter, FLORAQUEEN). The grounds for the complaint are as follows:

On the FLORAQUEEN website (<https://www.floraqueen.com/>), there is no indication of any contact method to exercise the data protection rights referred to in Regulation (EU) 2016/679 General Data Protection Regulation (GDPR). Searching on FLORAQUEEN's Facebook page, the complainant found the email address info@floraqueen.com. After sending an email to this address requesting access and exclusion from the processing of their data to FLORAQUEEN on December 3, 2020, and sending a reminder on December 8, 2020, the complainant had not received any response. Furthermore, there is no way to contact them directly regarding this matter on the FLORAQUEEN website; it does not appear on the customer service page nor is there any email address provided.

Along with the complaint, the following is submitted:

- Printout of the email dated December 3, 2020, sent from ***EMAIL.1 (hereinafter, complainant's email) to info@floraqueen.com with the following content:

"Due to the unsatisfactory resolution of my request for reimbursement for the undelivered flowers, I would like to exercise my rights under the GDPR so I can pursue legal action toward you.

1. Section 2, Article 15: Request a full Access of my information that you have stored on your systems
2. Section 3, Article 18: I want to Opt Out from any data processing that you may do with my personal information.

Finally, I keep clicking on unsubscribe from your email newsletter but I keep receiving your emails, please unsubscribe me immediately manually from your system as the function doesn't work."

[Unofficial Translation:

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"Due to the unsatisfactory resolution of my request for reimbursement for the undelivered flowers, I would like to exercise my rights under the GDPR so I can pursue legal action against you.

1. Section 2, Article 15: Request a full Access to the information that you have stored on your systems
2. Section 3, Article 18: I want to Opt Out from any data processing that you may do with my personal information.

Finally, I keep clicking on unsubscribe from your email newsletter, but I keep receiving your emails.

Please manually unsubscribe me from your system immediately, as this functionality does not work."]

- Printout of the email dated December 8, 2020, sent from the complainant's email to info@floraqueen.com with the following content:

"I'm still waiting for acknowledgment of my email and for my access request.

I have now contacted the Data Protection Commission in Ireland so the Data Protection Commissioner will reach out to you directly.

Waiting for your reply."

[Unofficial Translation:

"I'm still waiting for acknowledgment of my email and for my access request.

I have now contacted the Data Protection Commission in Ireland, so the Data Protection Commission will reach out to you directly.

Waiting for your reply.”]

- Printout of the email dated December 30, 2020, sent from support@floraqueen98.zendesk.com to the complainant's email with the following content:

“Your request (4974051) has been updated. To add additional comments, reply to this email.

Buongiorno,

abbiamo provveduto a cancellare i tuoi dati dal database delle newsletter come richiesto.

Cordiali saluti,”

[Unofficial Translation:

“Your request (4974051) has been updated. To add additional comments, reply to this email.

Good morning,

We have proceeded to delete your data from the newsletter database as requested.

Best regards,”]

This email appears as a response to another email sent by the complainant dated December 24, 2020, with the following content:

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3/21

“Hello,

I continue to unsubscribe from the mailing list through the email I receive, but I still keep receiving your newsletter. Please remove me from your mailing list. Additionally, on December 8, I sent you an email requesting two services related to my data under GDPR.

Section 2, Article 15: Request a full Access of my information that you have stored on your systems

Section 3, Article 18: I want to Opt Out from any data processing that you may do with my personal information.

I look forward to your updates.”

[Unofficial translation:

“Hola,

Sigo dándole a cancelar la suscripción de la lista de correo a través del correo electrónico que recibo, pero sigo recibiendo su newsletter. Por favor, quítenme de la lista de correo. Además, el 8 de diciembre le envié un correo electrónico para solicitar dos servicios relacionados con mis datos según el RGPD.

Sección 2, artículo 15: Solicitar un acceso completo a mi información que ha almacenado en sus sistemas

Sección 3, artículo 18: Quiero ser excluido de cualquier tratamiento de datos que pueda hacer con mi información personal.

Espero sus actualizaciones.”]

- Printout of an email dated January 18, 2022, sent by the claimant to support@floraqueen98.zendesk.com with the following content:

“Hello Floraqueen Customer service team,

I'm reaching out in follow up of my request from the 8th of December 2020 where I requested under the GDPR:

Section 2, Article 15: Request a full Access of my information that you have stored on your systems and

Section 3, Article 18: I want to Opt Out from any data processing that you may do with my personal information.

I require a reply and confirmation that my Access Request and Opt out is being processed.”

[Unofficial translation:

“Hola, Servicio de atención al cliente de Floraqueen

Me pongo en contacto para dar seguimiento a mi solicitud de 8 de diciembre de 2020 en la que

solicito, en virtud del RGPD:

Artículo 15, Sección 2: Solicitud de acceso total a mi información que tienen almacenado en sus sistemas y

Artículo 18, Sección 3: Quiero ser excluido de cualquier tratamiento de datos que puedan realizar con información personal.

Solicito una respuesta y confirmación de que mi Solicitud de Acceso y de Supresión está siendo tramitada.”]

- Printout of an email dated January 19, 2022, sent by support@floraqueen98.zendesk.com to the claimant's email with the following content:

“Good morning, A.A.A.

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4/21

We confirm that we have already canceled your account. Within two to three business days your username will be deleted from our database.

If you wish to register again, you already know where to find us :)

Best regards,

The FloraQueen team”

[Unofficial translation:

“Buenos días, A.A.A.

Confirmamos que ya hemos cancelado su cuenta. Dentro de dos a tres días hábiles su nombre de usuario será eliminado de nuestra base de datos.

Si desea volver a registrarse, ya sabe dónde encontrarnos :)

Saludos,

El equipo de FloraQueen.”]

- Printout of an email sent on January 19, 2022, from the claimant's email in response to the previous email with the following content:

“Thanks for getting back to me however I did not request the deletion of my account but Full access of the my data that you have stored in your systems and full opt out for data processing.

Please let me know if you can provide the above.

Best regards.”

[Unofficial translation:

“Gracias por responderme, sin embargo, no solicité la eliminación de mi cuenta sino acceso completo a mis datos que se han almacenado en sus sistemas y la exclusión completa del tratamiento de mis datos.

Por favor, díganme si pueden realizar esto.

Saludos.”]

SECOND: Through the “Internal Market Information System” (hereinafter IMI System), regulated by Regulation (EU) No. 1024/2012 of the European Parliament and of the Council of October 25, 2012 (IMI Regulation), whose objective is to promote cross-border administrative cooperation, mutual assistance among Member States, and the exchange of information, the aforementioned complaint was transmitted on February 1, 2022, and was registered with the Spanish Agency for Data Protection (AEPD) on February 4, 2022. The transfer of this complaint to the AEPD is carried out in accordance with the provisions of Article 56 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (hereinafter, GDPR), taking into account its cross-border nature and that this Agency is competent to act as the lead supervisory authority, given that FLORAQUEEN has its registered office and sole or main establishment in Spain.

The data processing carried out affects individuals in several Member States. According to the information incorporated into the IMI System, in accordance with the provisions of Article 60 of the

GDPR, it acts as an “interested supervisory authority,” in addition to the data protection authority of Ireland, the authorities of Austria, Poland, Norway, Denmark, Estonia, Hungary,

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5/21

Italy, France, Finland, and the German authority of Berlin, all under Article 4.22 of the GDPR, since the data subjects residing in those Member States are affected or are likely to be substantially affected by the processing subject to this procedure. The Swedish authority was also declared an interested supervisory authority.

THIRD: On May 9, 2022, in accordance with the then-current Article 64.3 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), the complaint filed by the complainant was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to supervisory authorities in Article 57.1 and the powers granted in Article 58.1 of the GDPR, and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

From the AEPD, information regarding this case was requested from FLORAQUEEN on two occasions, with outgoing registration dates from the AEPD on September 21, 2022, and November 14, 2022, obtaining the following results:

1. On both occasions, the Single Authorized Electronic Address (DEHÚ) service certified access to the information request by the representative of FLORAQUEEN B.B.B.
2. The representative of FLORAQUEEN accessed these information requests on September 22, 2022, and November 15, 2022, respectively.

However, there is no record in this Agency of any response from FLORAQUEEN to these information requests.

On March 1, 2023, a navigation was conducted on the website <https://www.floraqueen.com>, obtaining the following results:

3. After reviewing the legal notice and privacy web pages (<https://www.floraqueen.com/privacy>) and the customer service page (<https://www.floraqueen.com/support>), no indications were found on how to exercise data protection rights.
4. The only contact details found are the contact form in the “Customer Service” section, and the company's postal address, which appears within the “Privacy and Legal” section under the heading “Company Information” with the following text:

“FloraQueen Flowering the World S.L. (FloraQueen) is an organisation registered in the Registro Mercantil de Barcelona, volume 36,886, page 206, sheet B

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6/21

29047, with the address of Calle Frederic Mompou, 3, 08960, Sant Just Desvern (Barcelona) and tax identification code B-63609051. Info (AT) [floraqueen.com](https://www.floraqueen.com)

We would like to remind you that these are the general terms and conditions relating to our websites, and their services, features, contents and applications.”

[Unofficial translation: “FloraQueen Flowering the World S.L. (FloraQueen) is an organization registered in the Commercial Registry of Barcelona, volume 36,886, page 206, sheet B 29047, with address at Calle Frederic Mompou, 3, 08960, Sant Just Desvern (Barcelona) and tax identification number B-63609051. Info (EN) [floraqueen.com](https://www.floraqueen.com)

We would like to remind you that these are the general terms and conditions regarding our websites and their services, tools, contents, and applications.”].

On March 2, 2023, a query was made in the Monitoriza service of Axesor (<https://monitoriza.axesor.es/>), which states that the company FLORAQUEEN FLOWERING THE WORLD SL is a company of type “(...)” with ***AMOUNT.1 employees and a sales volume of ***AMOUNT.2 euros.

FIFTH: On December 12, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against FLORAQUEEN, for the alleged infringement of Article 15 of the GDPR, Article 17 of the GDPR, and Article 13 of the GDPR, all classified under Article 83.5 of the GDPR.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and after the period granted for the submission of allegations has elapsed, it has been confirmed that no allegations have been received from FLORAQUEEN.

Article 64.2.f) of the LPACAP - a provision of which FLORAQUEEN was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement about the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the defendant, and the sanction that could be imposed. Therefore, considering that FLORAQUEEN has not made any allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case a proposal for resolution.

In light of all that has been acted upon, the Spanish Agency for Data Protection considers the following proven facts in this procedure:

PROVEN FACTS

FIRST: On December 3, 2020, the complainant sent an email from ***EMAIL.1 to info@floraqueen.com with the following content:

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7/21

“Due to the unsatisfactory resolution of my request for reimbursement for the undelivered flowers, I would like to exercise my rights under the GDPR so I can pursue legal action toward you.

1. Section 2, Article 15: Request a full Access of my information that you have stored on your systems
2. Section 3, Article 18: I want to Opt Out from any data processing that you may do with my personal information.

Finally, I keep clicking on unsubscribe from your email newsletter but I keep receiving your emails, please unsubscribe me immediately manually from your system as the function doesn't work.”

[Unofficial translation: “Due to the unsatisfactory resolution of my request for reimbursement for the undelivered flowers, I would like to exercise my rights under the GDPR to pursue legal action against you.

1. Section 2, Article 15: Request a full Access of my information that you have stored on your systems
2. Section 3, Article 18: I want to Opt Out from any data processing that you may do with my personal information.

Finally, I keep clicking on unsubscribe from your email newsletter, but I keep receiving your emails. Please unsubscribe me immediately manually from your system as this functionality does not work.”]

SECOND: On December 8, 2020, the complainant sent an email to info@floraqueen.com with the following content:

“I'm still waiting for acknowledgment of my email and for my access request.

I have now contacted the Data Protection Commission in Ireland so the Data Protection Commissioner will reach out to you directly.

Waiting for your reply.”

[Unofficial translation: "I am still waiting for acknowledgment of my email and for my access request. I have now contacted the Data Protection Commission in Ireland, so the Data Protection Commissioner will reach out to you directly.

Waiting for your reply."]

THIRD: On December 24, 2020, the complainant sent an email to support@floraqueen98.zendesk.com, with the following content:

"Salve,

continuo a cancellarmi dalla mailing list attraverso l'email che ricevo ma continuo invece a ricevere la vostra newsletter. Per favore cancellatemi dalla vostra mailing list. Inoltre, l'8 dicembre vi ho mandato un'email per richiedere due servizi relativi ai miei dati a GDPR.

Section 2, Article 15: Request a full Access of my information that you have stored on your systems
C/ Jorge Juan, 6

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8/21

Section 3, Article 18: I want to Opt Out from any data processing that you may do with my personal information.

I await your updates.

[Unofficial translation:

"Hello,

I continue to unsubscribe from the mailing list through the email I receive, but I am still receiving your newsletter. Please remove me from the mailing list. Additionally, on December 8, I sent you an email requesting two services related to my data under the GDPR.

Section 2, Article 15: Request full access to my information that you have stored in your systems.

Section 3, Article 18: I want to Opt Out from any data processing that you may do with my personal information.

I await your updates."]

FOURTH: On December 30, 2020, the claimant received an email from support@floraqueen98.zendesk.com with the following content:

"Your request (4974051) has been updated. To add additional comments, reply to this email.

Good morning,

We have proceeded to delete your data from the newsletter database as requested.

Best regards,"

[Unofficial translation:

"Your request (4974051) has been updated. To add additional comments, reply to this email.

Good morning,

We have proceeded to delete your data from the newsletter database as you requested.

Best regards,"]

FIFTH: On January 18, 2022, the claimant sent an email to support@floraqueen98.zendesk.com with the following content:

"Hello Floraqueen Customer service team,

I'm reaching out in follow up of my request from the 8th of December 2020 where I requested under the GDPR:

Section 2, Article 15: Request a full Access of my information that you have stored on your systems
and

Section 3, Article 18: I want to Opt Out from any data processing that you may do with my personal information.

I require a reply and confirmation that my Access Request and Opt out is being processed."

[Unofficial translation:

"Hello, Floraqueen Customer Service

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9/21

I am contacting you to follow up on my request from December 8, 2020, in which I requested, under the GDPR:

Article 15, Section 2: Request full access to my information that you have stored in your systems and
Article 18, Section 3: I want to Opt Out from any data processing that you may do with my personal information.

I request a response and confirmation that my Access Request and Opt Out is being processed.”

SIXTH: On January 19, 2022, the claimant received an email from
support@floraqueen98.zendesk.com with the following content:

“Good morning, A.A.A.

We confirm that we have already canceled your account. Within two to three business days your username will be deleted from our database.

If you wish to register again, you already know where to find us :)

Best regards,

The FloraQueen team”

[Unofficial translation:

“Good morning, A.A.A.

We confirm that we have already canceled your account. Within two to three business days your username will be deleted from our database.

If you wish to register again, you already know where to find us :)

Best regards,

The FloraQueen team.”]

SEVENTH: On January 19, 2022, the claimant sent a reply email with the following content:

“Thanks for getting back to me however I did not request the deletion of my account but Full access of the my data that you have stored in your systems and full opt out for data processing.

Please let me know if you can provide the above.

Best regards”

[Unofficial translation:

“Thanks for responding, however, I did not request the deletion of my account but full access to my data that has been stored in your systems and full opt-out of data processing.

Please let me know if you can do this.

Best regards.”]

EIGHTH: On March 1, 2023, on the website <https://www.floraqueen.com>, when reviewing the legal notice and privacy pages (<https://www.floraqueen.com/privacy>) and the customer service page (<https://www.floraqueen.com/support>), it was found that there were no indications for exercising rights related to data protection.

And the only contact information found is the contact form in the “Customer Service” section, and

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10/21

the postal address of the company, which appears within the section “Privacy and Legal” in the heading “Company Information” with the following text:

“FloraQueen Flowering the World S.L. (FloraQueen) is an organisation registered in the Registro Mercantil de Barcelona, volume 36,886, page 206, sheet B 29047, with the address of Calle Frederic Mompou, 3, 08960, Sant Just Desvern (Barcelona) and tax identification code B-63609051. Info (AT) [floraqueen.com](https://www.floraqueen.com)

We would like to remind you that these are the general terms and conditions relating to our websites, and their services, features, contents and applications.”

NOVENO: On March 2, 2023, in the Monitoriza service of Axesor (<https://monitoriza.axesor.es/>), it is recorded that the company FLORAQUEEN FLOWERING THE WORLD SL had a sales volume of ***AMOUNT.2 euros.

FUNDAMENTALS OF LAW

I

Competence and applicable regulations

In accordance with the provisions of Articles 58.2 and 60 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data (GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 and 68.2 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Preliminary issues

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11/21

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, it is noted that there is a processing of personal data, since FLORAQUEEN collects, among others, the following personal data of individuals: name and email address, among other processing activities.

FLORAQUEEN carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

Furthermore, this is a cross-border processing, given that FLORAQUEEN is established in Spain, although it provides services to other countries in the European Union.

The GDPR provides, in its Article 56.1, for cases of cross-border processing, as foreseen in its Article 4.23), in relation to the competence of the main supervisory authority, that, without prejudice to the provisions of Article 55, the supervisory authority of the main establishment or the only establishment of the controller or processor shall be competent to act as the main supervisory authority for the cross-border processing carried out by such controller or processor in accordance with the procedure established in Article 60. In the case examined, as stated, FLORAQUEEN has its only establishment in Spain, so the Spanish Agency for the Protection of Data is competent to act as the main supervisory authority.

On its part, the right of access of the data subject to their personal data is regulated in Article 15 of the GDPR, while the right to erasure of personal data is regulated in Article 17 of the GDPR. Likewise, Article 13 of the GDPR indicates the information that must be provided when personal data is obtained from the data subject.

III

Right of access of the data subject

Article 15 “Right of access of the data subject” of the GDPR establishes:

“1. The data subject shall have the right to obtain from the controller confirmation as to whether or not personal data concerning them is being processed and, where that is the case, the right of access to the personal data and to the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;

- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;
- d) where possible, the envisaged period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
- e) the existence of the right to request from the controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject, or to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;

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12/21

- g) when the personal data has not been obtained from the data subject, any information available about its source;
- h) the existence of automated decisions, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, significant information about the logic applied, as well as the importance and the expected consequences of such processing for the data subject.

2. When personal data is transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards under Article 46 relating to the transfer.

3. The data controller shall provide a copy of the personal data undergoing processing. The controller may charge a reasonable fee based on administrative costs for any further copies requested by the data subject. When the data subject submits the request by electronic means, and unless the data subject requests another means of provision, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy mentioned in paragraph 3 shall not adversely affect the rights and freedoms of others.”

In this case, the complainant requested access to their personal data via email to the address info@floraqueen.com on December 3, 8, and 24, 2020. The complainant reiterated the access request via email to the address support@floraqueen98.zendesk.com on January 18 and 19, 2022. None of these requests received a proper response from FLORAQUEEN.

Therefore, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement attributable to FLORAQUEEN for violation of Article 15 of the GDPR.

IV

Classification and qualification of the infringement of Article 15 of the GDPR

The aforementioned infringement of Article 15 of the GDPR constitutes the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” provides:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, whichever is higher:

(...)

- b) the rights of data subjects under Articles 12 to 22; (...)

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13/21

For the purposes of the limitation period, Article 72 “[Very serious infringements]” of the LOPDGDD states:

“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following

infringements are considered very serious and shall be subject to a limitation period of three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following: (...)

k) The obstruction or hindrance or repeated failure to address the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679. (...)"

V

Sanction for the infringement of Article 15 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 15 of the GDPR, allows for the imposition of a sanction of €1,500 (one thousand five hundred euros).

VI

Imposition of measures for the infringement of Article 15 of the GDPR

It is considered appropriate to impose on the controller the obligation to provide access to the complainant to their personal data held in the systems of FLORAQUEEN within 30 days, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified period...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the requirements of this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

VII

Right to erasure

Article 17 "Right to erasure ('the right to be forgotten') of the GDPR states:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, which shall be

14/21

obliged to erase personal data without undue delay when any of the following circumstances occur:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and this is not based on another legal ground;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation under Union or Member State law applicable to the controller;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

(...)

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

- a) for exercising the right to freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law applicable to the controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes or statistical

purposes, in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to render impossible or seriously impair the achievement of the objectives of that processing, or e) for the establishment, exercise or defense of legal claims.

In this case, the complainant requested to be excluded from any processing of data that FLORAQUEEN might carry out with their personal data, via email to the address info@floraqueen.com on December 3, 8, and 24, 2020.

On December 30, 2020, the complainant received an email from the address support@floraqueen98.zendesk.com, informing them that the newsletter subscription had been canceled, but nothing was mentioned regarding the request for exclusion from the processing of their personal data.

The complainant reiterated the aforementioned request via email to the address support@floraqueen98.zendesk.com on January 18, 2022.

On January 19, 2022, the complainant received an email from the address support@floraqueen98.zendesk.com, informing them that their account had been canceled, but without further indications.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

15/21

On January 19, 2022, the complainant sent an email to support@floraqueen98.zendesk.com, indicating that they had not requested the cancellation of their account, but rather had requested full access to their data and to be excluded from the processing of the same. No response was received from FLORAQUEEN.

Therefore, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement, attributable to FLORAQUEEN, for violation of Article 17 of the GDPR.

VIII

Classification and qualification of the infringement of Article 17 of the GDPR

The aforementioned infringement of Article 17 of the GDPR constitutes the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, whichever is higher:

(...)

b) the rights of data subjects under Articles 12 to 22; (...)"

For the purposes of the limitation period, Article 72 "[Very serious infringements]" of the LOPDGDD states:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following shall be considered very serious and shall be subject to a limitation period of three years: infringements that constitute a substantial violation of the articles mentioned therein, and in particular the following:

(...)

k) The obstruction or hindrance or repeated failure to address the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679. (...)"

IX

Sanction for the infringement of Article 17 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 17 of the

GDPR, allows for the imposition of a sanction of €1,500 (one thousand five hundred euros).

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

16/21

X

Imposition of measures for the infringement of Article 17 of the GDPR

It is deemed appropriate to impose on the controller the obligation to delete the personal data of the complainant from the data held in the FLORAQUEEN systems within a period of 30 days, in accordance with the provisions of Article 58.2 d) of the GDPR, which states that each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

It is warned that failure to comply with the requirements of this authority could be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which could lead to the initiation of further administrative sanctioning procedures.

XI

Information to be provided to the data subject

Article 13 “Information to be provided when personal data are obtained from the data subject” of the GDPR states:

“1. When personal data relating to a data subject are obtained from the data subject, the controller shall provide the data subject with all the information indicated below at the time of obtaining the data:

- a) the identity and contact details of the controller and, where applicable, of the controller's representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or by a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time of obtaining the personal data, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, if that is not possible, the criteria used to determine that period;

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

17/21

- b) the existence of the right to request from the data controller access to personal data concerning the data subject, and its rectification or deletion, or the limitation of its processing, or to object to the processing, as well as the right to data portability;

- c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent

prior to its withdrawal;

d) the right to lodge a complaint with a supervisory authority;

e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and has been informed of the possible consequences of not providing such data;

f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to process personal data for a purpose other than that for which it was collected, it shall provide the data subject, prior to such further processing, information about that other purpose and any other relevant information pursuant to paragraph 2.

4. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

In this case, on March 1, 2023, it was verified that on the website <https://www.floraqueen.com>, after reviewing the legal notice and privacy pages (<https://www.floraqueen.com/privacy>) and the customer service page (<https://www.floraqueen.com/support>), no indications were found on how to exercise data protection rights.

The only contact details found are the contact form in the “Customer Service” section, and the company's postal address, which appears within the “Privacy and Legal” section under the heading “Company Information” with the following text:

“FloraQueen Flowering the World S.L. (FloraQueen) is an organization registered in the Commercial Registry of Barcelona, volume 36,886, page 206, sheet B 29047, with address at Calle Frederic Mompou, 3, 08960, Sant Just Desvern (Barcelona) and tax identification number B-63609051. Info (EN) [floraqueen.com](https://www.floraqueen.com)

We would like to remind you that these are the general terms and conditions regarding our websites and their services, tools, content, and applications.”

That is to say, the contact details of the data controller and, where applicable, its representative (Article 13.1(a) of the GDPR) are not provided, and there is no information regarding the existence of the right to request from the data controller access to personal data concerning the data subject, and its rectification or deletion, or the limitation of its processing, and to object to the processing, as well as the right to data portability (Article 13.2(c) of the GDPR).

Therefore, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement attributable to FLORAQUEEN for violation of Article 13 of the GDPR.

XII

Classification and qualification of the infringement of Article 13 of the GDPR

The aforementioned infringement of Article 13 of the GDPR constitutes the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” provides:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

(...)

b) the rights of data subjects under Articles 12 to 22; (...)”

For the purposes of the limitation period, Article 74 “Minor infringements” of the LOPDGDD indicates:

“Minor infringements shall be considered and shall prescribe after one year, the remaining formal infringements of the articles mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU)

2016/679 and, in particular, the following:

a) The failure to comply with the principle of transparency of information or the right to information of the affected party by not providing all the information required by Articles 13 and 14 of Regulation (EU) 2016/679. (...)”

XIII

Sanction for the infringement of Article 13 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

As aggravating factors:

- The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected data subjects and the level of damage and harm they have suffered (paragraph a): for failing to provide data subjects, on their website at

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

19/21

English: <https://www.floraqueen.com/>, all the information required by Article 13 of the GDPR, in particular, regarding the contact details of the data controller and the exercise of rights that are granted to the data subjects under the GDPR, from at least December 2020 to the present.

- Any previous infringement committed by the data controller or the data processor (section e): On November 15, 2022, the Director of the AEPD signed the resolution of sanctioning procedure PS/00616/2021 in which a warning was issued to FLORAQUEEN for the infringement of Article 12 of the GDPR, for failing to respond in a timely manner to the request for the deletion of the personal data of the complaining party.

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at the present moment of the resolution of the sanctioning procedure, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 13 of the GDPR, allows for the imposition of a sanction of €5,000 (five thousand euros).

XIV

Imposition of measures for the infringement of Article 13 of the GDPR

It is deemed appropriate to impose on the data controller the obligation to update the privacy policy of FLORAQUEEN on its English site <https://www.floraqueen.com/> within a period of 60 days, in order to include the information required by Article 13 of the GDPR, particularly regarding the exercise of rights granted to the data subject, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the data controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

Furthermore, these measures adopted in this resolution, in relation to the information that must be provided in its privacy policy, apply in all countries of the European Union where FLORAQUEEN operates.

It is warned that failure to comply with the requirements of this body could be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which could lead to the initiation of a further sanctioning administrative procedure.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on FLORAQUEEN FLOWERING THE WORLD S.L., with NIF B63609051:

C/ Jorge Juan, 6

www.aepd.es
28001 – Madrid
sedeagpd.gob.es
20/21

- For the infringement of Article 15 of the GDPR, classified under Article 83.5 of said regulation, an administrative fine of 1,500.00 euros
- For the infringement of Article 17 of the GDPR, classified under Article 83.5 of said regulation, an administrative fine of 1,500.00 euros
- For the infringement of Article 13 of the GDPR, classified under Article 83.5 of said regulation, an administrative fine of 5,000.00 euros

SECOND: ORDER FLORAQUEEN FLOWERING THE WORLD S.L., with NIF B63609051, to, pursuant to Article 58.2.d) of the GDPR, provide proof of:

- Within 30 days from the date this resolution becomes final and enforceable, proceed to grant the claimant due access to their personal data held in the systems of FLORAQUEEN.
- Within 30 days from the date this resolution becomes final and enforceable, proceed to delete the personal data of the claimant held in the systems of FLORAQUEEN.
- Within 60 days from the date this resolution becomes final and enforceable, proceed to update the privacy policy of FLORAQUEEN on its English site <https://www.floraqueen.com/>, in order to include the information required by Article 13 of the GDPR, especially regarding the exercise of rights that the data subject is entitled to.

THIRD: NOTIFY this resolution to FLORAQUEEN FLOWERING THE WORLD S.L.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right. It is warned to the sanctioned party that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

21/21

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National

Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation proving the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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